

PCL327458 Teodo Holdings, LLC vs. Nicholson, Delores

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-07-21

Motion: Defendant/Judgment Creditor Motions to Compel Initial Responses to (1) Special Interrogatories and (2) Requests for Production of Documents; Sanctions

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Re: Teodo Holdings, LLC vs. Nicholson, Delores

Case No.: PCL327458

Date: July 21, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Defendant/Judgment Creditor Motions to Compel Initial Responses to (1) Special Interrogatories and (2) Requests for Production of Documents; Sanctions

Tentative Ruling: (1) and (2) To find the motions moot via service of responses on June 17, 2026; to order sanctions imposed against Plaintiff/Judgment Debtor and its counsel of record, jointly and severally, in the total amount of \$470; sanctions are due no later than thirty (30) days after service of the notice of this ruling for this motion.

Facts Common to (1) and (2)

In this matter, Defendant/Judgment Creditor obtained a judgment after trial in the amount of \$9,250 and indicates further costs incurred in attempting collection thereof.

As part of the collection efforts, Defendant/Judgment Creditor served, on May 5, 2026, Special Interrogatories and Demands for Production on Plaintiff/Judgment Debtor via counsel.

Responses were due no later than June 9, 2026.

As of the filing of these motions on June 16, 2026, no responses had been received.

Defendant/Judgment Creditor seeks to compel initial responses thereto and for sanctions in the amount of \$515 as to each motion.

In opposition, Plaintiff/Judgment Debtor indicates service of responses on June 17, 2026 and that therefore these motions, and the request for sanctions, are moot.

Authority and Analysis

A judgment creditor may propound interrogatories and requests for production to the judgment debtor, which may be enforced in the same manner as written discovery in a civil action. (Code Civ. Proc, §§ 708.020(a), (c); 708.030(a), (c).) The written discovery here seeks facts about the nature and location of a judgment debtor's assets, which is permissible.

(1) and (2) - Interrogatories and Requests for Production of Documents

Based on the service of initial responses on June 17, 2026, the Court finds these motions moot with respect to compelling initial responses.

Sanctions

The Court finds sanctions are warranted in this instance and that neither Plaintiff/Judgment Debtor nor counsel acted with substantive justification in failing to timely serve responses and imposition of the sanctions would not be unjust. (Civ. Proc. Code § 2031.320; Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)

However, the Court finds the reasonable and appropriate amount of monetary sanctions on this motion to be less than requested. Under Code of Civil Procedure sections 2030.290(c) (Interrogatories) and 2031.300(c) (Requests for Production), the Court imposes sanctions in the amount of \$470 total against Plaintiff/Judgment Debtor and its counsel of record, jointly and severally, consisting of one total hour for both motions at the rate of \$350 and \$120 in filing fees.

The Court notes there is no meet and confer requirement and all that is necessary to obtain the relief requested on this motion to compel initial responses is that the other party failed to respond within the designated time.

Sanctions are due within thirty (30) days after service of the notice of this ruling for this motion.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.